

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 2137 of 2015

Jasim.

.....Convict-appellant.

-Versus-

The State.

.....Respondent.

Mr. Suruzzaman, Advocate

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

.... For the respondent.

Judgment on 30.07.2024.

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant, Jasim is directed against the impugned judgment and order of conviction and sentence dated 22.03.2015 passed by the learned Judge, Special Tribunal No. 5, Cumilla, in Special Tribunal Case No. 311 of 2009 arising out of G.R. No. 142 of 2008 corresponding to Sadar Dakhin Police Station case No. 39 dated 14.08.2008 convicting the accused-appellant and 3 others under section 25B(2) of the Special Powers Act, 1974 and sentencing them thereunder to suffer rigorous imprisonment for a period of 05(five) years and to pay a fine of Tk. 2,000/= (two thousand) in

default to suffer simple imprisonment for 02(two) months more.

The prosecution case, in short, is that one, Tapon Bagchi, A.S.I. as informant on 14.08.2008 at 14.45 hours lodged an Ejahar with Sadar South Police Station, Cumilla against the accused appellant, Jashim and 4 others stating, inter-alia, that on 14.08.2008 at 04.15 hours while the informant with other police forces were on duty as per G.D. No. 994 dated 20.04.2011 against drug dealing got a secret information that 5/6 drug pedlars are carrying and possessing phensedyls near about Jashim Uddin's home at village Noa, under Sadar South Police Station, Cumilla and then the informant party rushed there while sensing the presence of police accused persons tried to escape but the informant party somehow managed to arrest accused No. 1, Ershad and 2. Jamal Hossen and other 3 accused persons managed to escape from the place of occurrence leaving 6 cartons and thereafter, police recovered 150 bottles of phensedyl from accused Ershad and Jamal Hossen kept in 3 cartons and 300 bottles of phensedyl from other leaving 6 cartons, total 450 bottles phensedyl, which valued at Tk. 25,000/-(twenty five thousand) in presence of witnesses. On interrogation accused persons disclosed the name of the absconding accused are being Md. Selim @ Dakter, 4, Saiful and 5. Jashim. Police seized those phensedyls by preparing seizure list in presence of witness.

Upon the aforesaid First Information Report, Sadar Dakhin Police Station case No. 39 dated 14.08.2008 under section 25B of the Special Powers Act, 1974 was started against the accused appellant and 4 others.

Police after completion of usual investigation submitted charge sheet against the accused appellant and 4 others, vide charge sheet No. 558 dated 26.11.2008 under section 25B of the Special Powers Act, 1974.

Ultimately, the accused appellant and others were put on trial before the learned Judge, Special Tribunal No. 5, Cumilla to answer a charge under section 25B(2) of the Special Powers Act, 1974 to which the accused appellant and others pleaded not guilty and claimed to be tried stating that they have been falsely implicated in the case.

At the trial, the prosecution examined in all 06 (six) witnesses to prove its case, while the defence examined none.

On conclusion of trial, the learned Judge, Special Tribunal No. 5, Cumilla by the impugned judgment and order dated 22.03.2015 found the accused appellant and others guilty under section 25B(2) of the Special Powers Act, 1974 and sentenced them thereunder to suffer rigorous imprisonment for a period of 05(five) years and to pay a fine of Tk. 2,000/= (two thousand) in default to suffer simple imprisonment for 02(two) months more each.

Aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 22.03.2015, the accused-appellant preferred this criminal appeal.

Mr. Suruzzaman, the learned Advocate appearing for the convict appellant in the course of argument takes me through the FIR, deposition of witnesses and other materials on record and then submits that accused appellant is out and out innocent, who has been made scapegoat the case, in fact, no incriminating phensedyls was recovered from the possession and control of the accused appellant. The learned Advocate next submits, it is on record that accused appellant was not arrested from the place of occurrence, who on knowing about the case voluntarily surrendered on 27.08.2009 and obtained bail and in this case prosecution examined in all 6 witnesses out of them no one testified any single word against the accused appellant, PW-4 and PW-5 were declared hostile by the prosecution and there has been no chemical examination of the phensedyl in question which is serious lacuna on the part of the prosecution although the learned tribunal judge without considering all these vital aspects of the case mechanically found the accused appellant guilty of the offence under section 25B(2) of the Special Powers Act, 1974, which occasioned a failure of justice.

Ms. Shahida Khatoon, the learned Deputy Attorney General, on the other hand, supports the impugned judgment which was according to her just, correct and proper.

On scrutiny of the record, it appears that police arrested the accused Ershad and Jamal Hossen on 14.08.2008 and seized total 9 cartons containing 450 bottles of phensedyl and it is on record that accused appellant was not apprehended from the place of occurrence, who voluntarily surrendered in this case on 27.08.2009. In this case the prosecution to prove the charge examined as many as 6 witnesses out of whom seizure list witnesses namely PW-4 and PW-5 were declared hostile and rest police witnesses namely, PW-1, PW-3 and PW-6 stated nothing as to recovery of phensedyl from the exclusive possession the accused appellant. PW-2, Tapon Bagchi, A.S.I. as informant of the case narrated the FIR case. Besides, in this case there has been no chemical examination of the phensedyls in question which is serious lacuna on the part of the prosecution. Therefore, it is difficult to believe that seized articles are actually contraband goods.

On a close perusal of the record, it appears that none of the witnesses stated any single word that the accused persons brought those seized phensedyl by way of smuggling from India for the purpose of sale. It is thus difficult to believe that alleged seized phensedyls were

actually contraband in nature or the same were brought into Bangladesh from India by way of smuggling.

In the case of Raju Ahmed and others Vs. The State reported in 7 MLR 112, it has been held as follows:

“There has been no chemical examination of the phensedyl in question which is serious lacuna on the part of the prosecution whose duty it was to establish that the seized goods are contraband goods.”

In the case of Nannu Mia alias Habibur Rahman Vs. The State reported in 55 DLR7, it has been held as follows:

“Before convicting the appellant the court must give findings that the phensedyl in question found in his possession was a contraband item smuggled into Bangladesh for sale”.

In the case of Md. Akram vs. the State reported in 1LM (AD) 581, it has been held as follows:

Normally this Division does not interfere with the judgment of the High Court Division on appeal if it is found that the judgment is based on proper appreciation of the evidence. It cannot reassess the evidence afresh as a court of appeal to examine whether or not the High Court Division has properly appreciated the evidence while believing the recovery of the contraband goods from the possession of the petitioner. Learned counsel appearing for the petitioner is also conscious on the question of finding of fact and does not argue that the prosecution has failed to prove the recovery beyond reasonable

doubt. He however argues that on the admitted facts no offence discloses against the petitioner at all and therefore, of the High Court Division has erred in law in maintaining the conviction petitioner. In this connection the learned counsel has drawn our attention to the evidence on record and section 25B (2) of the Special Powers Act, 1974.

Sub-section (2) of section 25B reads thus: "Whoever sells, or offers or displays for sale, or keeps in his possession or under his control for the purpose of sale, any goods the bringing of which into Bangladesh is prohibited by or under any law for the time being in force shall be punishable with imprisonment for a term which may extend to seven years and shall not be less than one year, and shall also be liable to fine."

This sub-section lays down the constituents of the constitution of an offence of second degree smuggling and its sentence. It provides that if any person is found (i) in selling or (ii) offering or displaying for sale, or (iii) keeps in his possession or under his control for the purpose of sale, any goods the bringing of which into Bangladesh prohibited by law, he will be guilty of the offence. Now taking these three conditions in mind, it is to be examined whether any of these preconditions has been proved by the prosecution against the petitioner. The first two conditions are not attracted in this case since it is not the prosecution case that the petitioner was selling or offering for sale or displays for sale of a bottle of phensedyl. He was found in possession of a bottle of phensedyl which he was carrying on his way by driving a motorbike. Therefore, he may be charged with for violating the last subject to the condition that he has kept it in his possession or has carried it for the purpose Of sale. Neither in the FIR nor in the evidence of P.W.1 or in the evidence of other

witnesses, there is any allegation that the petitioner has kept or carried one bottle of phensedyl for the purpose of sale. It is the consistent case that the phensedyl bottle was recovered from his possession while the petitioner was approaching towards Dupchanchia. Only possession of contraband goods does not constitute an offence of smuggling within the meaning of section 25B (2). It is only if any person keeps in his possession for the purpose of sale of the contraband goods the bringing of which is prohibited by law, an offence of the second category of smuggling will be attracted.

From a plain reading of the above quoted decisions of our Apex Court, it appears that only possession of contraband goods does not constitute an offence of smuggling within the meaning of section 25B (2) of the Special Powers Act, 1974,

As, I have already indicated that in this case the prosecution could not produce any evidence oral or documentary to show that the convict-appellant brought those phensidyl syrups from India by way of smuggling and kept the same under his possession and control for the purpose of sale. In the facts and circumstances of the case and the evidence on record it must be held that the prosecution failed to prove the charge of smuggling under section 25B(2) of the Special Powers Act, 1974 beyond reasonable doubt. Consequently the appeal succeeds.

In the result, the appeal is allowed and the impugned judgment and order of conviction and sentence dated

22.03.2015 passed by the learned Judge, Special Tribunal No. 5, Cumilla, in Special Tribunal Case No. 311 of 2009 arising out of G.R. No. 142 of 2008 corresponding to Sadar Dakhin Police Station case No. 39 dated 14.08.2008 convicting the accused-appellant under section 25B (2) of the Special Powers Act, 1974 is set aside and he is acquitted of the charge levelled against him.

Accused appellant, Jasim is discharged from his bail bonds.

Send down the lower Court records at once.